

CONSENT ORDER

This order is made by the investigation committee upon the respondent's acceptance of a proposal by the committee under section 73(1) of the *Professional Governance Act*.

Between

Association of BC Forest Professionals

("ABCFP")

And

Mark DASCHER, RPF #2882

("DASCHER")

Background

1. DASCHER has been licensed as a Registered Professional Forester ("RPF") since 1994.
2. In February 2021, the ABCFP received a Notice of Complaint against DASCHER from an employee of the Regional District of Central Kootenay (the "Complaint"). The Complaint centered on activities that DASCHER undertook on his private property on Slocan lake in 2020, resulting in damage to the riparian area and a concern that DASCHER was not qualified to complete a riparian assessment required by the regional district for such activity.
3. In April 2021, the ABCFP notified DASCHER of its acceptance of the Complaint and of the Investigation Committee's authorization of an investigation of the matter. DASCHER was given the opportunity to respond to the allegations against him, and a panel of three inspectors was assigned to further investigate the matter.



4. Following the investigation, the inspector panel issued an investigation report for the Investigation Committee's review and consideration, and DASCHER was given a further opportunity to respond to it. The Investigation Committee reviewed the investigation report and DASCHER's comments in response, and, in September 2022, the ABCFP issued a notice to DASCHER informing him of the Committee's preliminary assessment that he had:
 - (a) contravened the Code of Ethics in ABCFP's former Bylaw 11 under the *Foresters Act* including his duty under:
 - (i) Bylaw 11.3.3 to have regard for existing legislation, regulation, policy and common law; and to seek to balance the health and sustainability of forests, forest lands, forest resources, and forest ecosystems with the needs of those who derive benefits from, rely on, have ownership of, have rights to, and interact with them;
 - (ii) Bylaw 11.3.7 to practice only in those fields where training and ability make the member professionally competent;
 - (iii) Bylaw 11.3.9 to express a professional opinion only when it is founded on adequate knowledge and experience;
 - (iv) Bylaw 11.4.1 to inspire confidence in the profession by maintaining high standards in conduct and daily work;
 - (v) Bylaw 11.4.4 to not to misrepresent facts;
 - (vi) Bylaw 11.5.4 to accept only those assignments for which the member is qualified or seek assistance from knowledgeable peers or specialists whenever a field of practice is outside the member's competence;
 - (vii) Bylaw 11.5.6 to refuse to accept any assignment that creates a conflict of interest; and



- (b) engaged in conduct unbecoming a member as defined in section 1 of the former *Foresters Act*; and specifically engaged in:
 - (i) conduct that undermines the scientific methods and principles that are the foundation of the practice of professional forestry; and,
 - (ii) conduct that undermines the principles of stewardship that are the foundations of the practice of professional forestry.

Admissions

- 5. DASCHER admits, under section 73(3)(b) of the *Professional Governance Act*, that:
 - (a) In the process of developing his property on Slocan Lake, he failed to obtain appropriate professional services, assessments and approvals to complete the work, leading to damage, unauthorized alteration of the foreshore and non-compliance with federal, provincial and regional laws, in contravention of ABCFP Bylaw 11.3.3.
 - (b) In attempting to complete a Riparian Assessment to comply with the regional district requirements and the *Riparian Areas Protection Act*, he failed to meet the standards of a Qualified Environmental Professional for the purpose of assessing the works on his own property, in contravention of ABCFP Bylaws 11.3.7, 11.3.9, 11.4.1 and 11.5.4.
 - (c) He put himself in a conflict of interest by attempting to act as a Qualified Environmental Professional on his own property and after being confronted by the regional district, instead of hiring an appropriately qualified and independent professional to complete a riparian assessment, in contravention of ABCFP Bylaw 11.5.6.
 - (d) In the course of completing the riparian assessment for his own property and during the ABCFP investigation into this matter, he made multiple



statements that misrepresented facts, site conditions, timing and events, in contravention of ABCFP Bylaw 11.4.4.

- (e) As a result of his actions on his own property, the damage done to the environment, his lack of regard for regulatory and regional requirements, and general disregard for the statutes that govern the activities that he undertook, he committed conduct unbecoming a member.

Disposition

6. DASCHER consents to the Investigation Committee making the following orders:
 - (a) That DASCHER will pay a penalty of \$20,000 to the ABCFP under section 75(6)(b) of the *Professional Governance Act*;
 - (b) That DASCHER will be required to complete an ethics course approved by the Audit and Practice Review Committee under section 75(6)(f) of the *Professional Governance Act*;
 - (c) That DASCHER will be issued a written reprimand under section 75(6)(a) of the *Professional Governance Act*, which will remain on his file indefinitely;
 - (d) That DASCHER's registration as an RPF will be suspended under section 75(6)(d) of the *Professional Governance Act* until he has paid the penalty required by paragraph (a) and the Audit and Practice Review Committee is satisfied that he has completed the ethics course required by paragraph (b).
7. DASCHER acknowledges that this consent order has the same effect as an order made by a panel of the Discipline Committee of the ABCFP after a hearing under section 75 of the *Professional Governance Act*.
8. DASCHER acknowledges that the ABCFP will be required under ABCFP Bylaw 13-7 to notify the public of this consent order by publishing a discipline digest on the ABCFP's website and in its newsletter that will contain a summary of the circumstances of this case, including the full text or summary of this order.



9. DASCHER acknowledges that he has read this consent order, fully understands its terms, and has voluntarily accepted it for the purpose of fully and finally resolving all matters arising out of or related to the Complaint.
10. DASCHER understands that he has the right to seek independent legal advice and has been encouraged to seek such advice before signing this consent order.

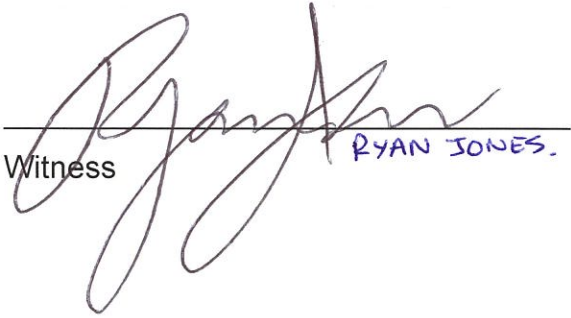
This consent order has been proposed by the Investigation Committee and is accepted by DASCHER effective this 26 day of October, 2022.



Bruce Blackwell, RPF
Chair, Investigation Committee



MARK C. DASCHER, RPF #2882



Witness

RYAN JONES.